

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE SENATE

SENATE BILL NO. 1277

BY LOCAL GOVERNMENT AND TAXATION COMMITTEE

AN ACT

RELATING TO ACCESSORY DWELLING UNITS; AMENDING SECTION 55-618, IDAHO CODE, TO REVISE PROVISIONS REGARDING INTERNAL ACCESSORY DWELLING UNITS; AMENDING SECTION 55-3212, IDAHO CODE, TO REVISE PROVISIONS REGARDING ACCESSORY DWELLING UNITS AND TO REMOVE A DEFINITION; AMENDING CHAPTER 65, TITLE 67, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 67-6541, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING ACCESSORY DWELLING UNITS AND TO PROVIDE A DEFINITION; PROVIDING SEVERABILITY; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 55-618, Idaho Code, be, and the same is hereby amended to read as follows:

55-618. ~~INTERNAL~~ ACCESSORY DWELLING UNITS -- RESTRICTIVE COVENANTS PROHIBITED. (1) On and after July 1, ~~2023~~ 2026, no restrictive covenant may be entered into that prohibits ~~an internal~~ or unreasonably restricts accessory dwelling ~~unit units~~, as defined in section ~~55-3212~~ 67-6541, Idaho Code. Any such covenant is hereby declared to be against public policy and is void and unenforceable. Any person attempting to create or enforce such a covenant shall be liable for any attorney's fees, court costs, and any other damages incurred by the other party. ~~The provisions of this section shall not be construed to protect more than one (1) internal accessory dwelling unit per homestead.~~

(2) This section does not apply to a restrictive covenant against ~~internal~~ accessory dwelling units entered into prior to July 1, ~~2023~~ 2026.

SECTION 2. That Section 55-3212, Idaho Code, be, and the same is hereby amended to read as follows:

55-3212. ~~INTERNAL~~ ACCESSORY DWELLING UNITS. (1) No covenant, condition, or restriction may be added, amended, or enforced by a homeowner's association or any other parties in such a way that strictly prohibits ~~internal~~ or unreasonably restricts accessory dwelling units, as defined in ~~subsection (3) of this section~~ 67-6541, Idaho Code. ~~The provisions of this section shall not be construed to protect more than one (1) internal accessory dwelling unit per homestead.~~

(2) Notwithstanding the prohibitions provided in subsection (1) of this section, a homeowner's association may adopt reasonable rules governing the use of ~~internal~~ accessory dwelling units otherwise allowed by law, including but not limited to size limits, height limits, setback requirements, open space requirements, parking controls, and bedroom requirements.

~~(3) (a) An "internal accessory dwelling unit" means a self-contained living unit that:~~

~~(i) Includes its own cooking, sleeping, and sanitation facilities;~~

~~(ii) Is located within a detached, owner-occupied homestead, as defined in section 63-701, Idaho Code, or such homestead's attached or detached garage; and~~

~~(iii) Is used for the purpose of housing relatives of the owner of the homestead or for the purpose of renting to a residential tenant for a period exceeding thirty (30) days.~~

~~(b) An internal accessory dwelling unit does not include an alternative detached structure, motor home, camper, recreational vehicle, tiny home on wheels, or other such similar dwellings on wheels.~~

~~(4) (3)~~ Nothing in this section shall be construed to restrict a homeowner's association from adopting a less restrictive definition of accessory dwelling units.

~~(5) (4)~~ The provisions of this section do not apply to any rentals defined in section 63-1803(4), Idaho Code.

SECTION 3. That Chapter 65, Title 67, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 67-6541, Idaho Code, and to read as follows:

67-6541. ACCESSORY DWELLING UNITS. (1) No county, city, health district, sewer district, or water district shall enact or enforce any ordinance, rule, regulation, or policy that bans accessory dwelling units in any residential zoning area within its jurisdiction. An accessory dwelling unit shall be classified as a residential land use for zoning purposes subject to all applicable zoning requirements. "Accessory dwelling unit" means a self-contained living unit that includes its own cooking, sleeping, and sanitation facilities and that is located on the same lot as a single-family primary dwelling. An accessory dwelling unit may be internal, attached, or detached but does not include a motorhome, camper, recreational vehicle, tiny home on wheels, or other such similar dwellings on wheels.

(2) By resolution or ordinance adopted, amended, or repealed in accordance with the notice and hearing procedures provided under section 67-6509, Idaho Code, each governing board shall amend its comprehensive plan and land use regulations for all land zoned for single-family residential uses, except for lands falling within an area defined as a historic district under section 67-4607, Idaho Code, to:

(a) Allow for one (1) accessory dwelling unit on lots with a size of up to one (1) acre and a maximum of two (2) accessory dwelling units for lots larger than one (1) acre. Where one (1) accessory dwelling unit is an internal accessory dwelling unit within the single-family primary dwelling, up to two (2) accessory dwelling units shall be allowed regardless of the size of the lot;

(b) Prohibit requiring any off-street parking or guest parking for any accessory dwelling unit;

(c) Prohibit imposing impact fees or utility connection fees on accessory dwelling units that are greater than those imposed on other single-family dwellings;

1 (d) Prohibit limiting the size of an accessory dwelling unit to less
2 than one thousand (1000) square feet or seventy-five percent (75%) of
3 the size of the primary dwelling;

4 (e) Prohibit imposing a setback requirement greater than four (4) feet
5 from the side and rear lot lines for an accessory dwelling unit that is
6 not converted from an existing structure or for a new structure con-
7 structed in the same location and to the same dimensions as an existing
8 structure;

9 (f) Prohibit an owner-occupancy requirement for the primary dwelling
10 or for the accessory dwelling unit;

11 (g) Prohibit restrictions for accessory dwelling units that are more
12 restrictive than restrictions for single-family dwellings within the
13 same zoning area with regard to height, setbacks, lot size, or coverage
14 or building frontage;

15 (h) Prohibit imposing a limit on density that is more restrictive than
16 the greater of either the highest residential density allowed in the mu-
17 nicipality or thirty-six (36) dwelling units per acre;

18 (i) Prohibit imposing a limit on building height that is more restric-
19 tive than the greater of either the highest height applicable to an of-
20 fice, commercial, retail, or warehouse development constructed on the
21 site or forty-five (45) feet; and

22 (j) Prohibit imposing a setback or buffer requirement that is more
23 restrictive than the lesser of either a setback or buffer requirement
24 applicable to an office, commercial, retail, or warehouse development
25 constructed on the site or twenty-five (25) feet.

26 (3) Accessory dwelling unit projects that meet the jurisdiction's es-
27 tablished land use requirements shall be approved administratively and as a
28 matter of right, without the need for discretionary approval.

29 (4) Any approval standards, special conditions, and procedures for ap-
30 proval adopted by a local government shall be clear and objective and shall
31 not have the effect, either singularly or cumulatively, of discouraging the
32 development of accessory dwelling units through unreasonable cost or delay.

33 (5) A property owner, housing developer, or other affected party may
34 bring a private cause of action for injunctive relief, monetary damages,
35 reasonable attorney's fees and costs, and any other appropriate relief
36 available under law to enforce compliance with the provisions of this sec-
37 tion.

38 SECTION 4. SEVERABILITY. The provisions of this act are hereby declared
39 to be severable and if any provision of this act or the application of such
40 provision to any person or circumstance is declared invalid for any reason,
41 such declaration shall not affect the validity of the remaining portions of
42 this act.

43 SECTION 5. An emergency existing therefor, which emergency is hereby
44 declared to exist, this act shall be in full force and effect on and after
45 July 1, 2026.